

The European Data Protection Board issued an urgent binding decision on October 27, 2023, instructing the Irish Data Protection Authority as the lead supervisory authority to take final measures within two weeks regarding Meta Ireland Limited (Meta IE) and to impose a ban on the processing of personal data for behavioral advertising based on the legal grounds of contract and legitimate interest throughout the European Economic Area.

The urgent binding decision followed a request from the Norwegian Data Protection Authority to take final measures in this area that would have an effect across the European Economic Area. The processing ban will take effect one week after the Irish supervisory authority notifies the data controller of the final measures.

On October 31, the Irish Data Protection Authority informed Meta of the urgent binding decision of the European Data Protection Board. The European Data Protection Board acknowledges Meta's proposal of October 30, 2023, to rely on a "consent-based approach." The Irish Data Protection Authority is currently assessing this in conjunction with the relevant supervisory authorities.

The Chair of the European Data Protection Board, Anu Talus, stated: "After careful consideration, the European Data Protection Board deemed it necessary to instruct the Irish supervisory authority to impose a processing ban on Meta at the level of the European Economic Area. The binding decisions of the European Data Protection Board already clarified in December 2022 that a contract is not an appropriate legal basis for the processing of personal data for the purpose of behavioral advertising conducted by Meta. Furthermore, the Irish supervisory authority found that Meta has not demonstrated compliance with the orders issued at the end of last year. It is high time for Meta to align its processing and cease unlawful processing."